

Advertising Services Agreement (Advertiser Contract)

⚠ **DRAFT — NOT LEGAL ADVICE.** An inventor-prepared **template execution contract** for qualified counsel to review, tailor, and approve before it is offered to advertisers. This is the signable form of the advertiser relationship; it consolidates the substance of `ADVERTISER-TERMS-AND-AGREEMENT` into an execution-style agreement. Bracketed items **[LIKE THIS]** are for counsel/owner. Prepared 2026-09-14.

THIS ADVERTISING SERVICES AGREEMENT ("Agreement") is entered into as of the date of the Advertiser's electronic acceptance or signature below (the "Effective Date"), by and between:

- **[LICENSOR — legal entity name]**, a **[state / entity type]** ("Company"), and
- the business identified in the order / signature block below ("Advertiser").

Company operates **Get Goods Gratis (Free)**, an 18+ closed-loop retail / e-commerce rewards marketplace (the "Platform"). Advertiser wishes to purchase advertising on the Platform. The parties agree as follows.

1. Definitions

"Advertising" — the impressions, placements, and related services described in the Order. **"Order"** — the tier/product selection, price, and options the Advertiser accepts. **"Site Cash"** — non-cashable, closed-loop Platform store credit. **"Founding Offer"** — the introductory founding-advertiser package, where applicable.

2. Advertising services purchased

Company will provide the Advertising described in the Advertiser's **Order** — a tiered advertiser product (Tier 1 / Founding, Tier 2 "Scale," Tier 3 "Unlimited"), and/or sponsored listings, boosts, and PPC-network advertising — with the impression allotment, placement, and features stated at purchase. **[Counsel: confirm the Order/product descriptions are accurate and not an implied performance claim.]**

3. Term

This Agreement begins on the Effective Date and continues for the purchased term (a **4-year package** for the founding/Tier 1 product), unless terminated under §9.

4. Fees and billing

4.1 Price. Advertiser will pay the fees in the Order. The founding/Tier 1 price is **\$13,000/year, billed \$1,000 every 4 weeks across 13 cycles** (a prepaid annual package). **[Counsel: confirm the "13 four-week cycles" disclosure, not "monthly."]**

4.2 Free-trial entry and auto-conversion (if elected). Where the Advertiser starts on a free trial, the trial **auto-converts to the paid plan** on the terms the Advertiser separately and affirmatively consents to at signup, which are: **recurring 13-cycle billing (not a lump sum); the first charge only after the audience/launch value has begun delivering; advance reminders (7/3/1 days) each with one-click cancel; and a 30-day post-conversion refund window.** Advertiser may cancel at any time before or after conversion as described in the Order and §9. **[Counsel: this is a negative-option feature — confirm ROSCA / FTC Negative-Option Rule / state auto-renewal compliance and the consent/disclosure copy before it is enabled; it ships OFF by default.]**

4.3 Payment method + taxes. Card payments use Strong Customer Authentication (3-D Secure) where required. Advertiser is responsible for applicable taxes on its purchase. **[CPA/counsel: sales-tax/VAT on advertising services by jurisdiction.]**

5. Delivery — value delivered, results never guaranteed

Company will **deliver the Advertising value purchased** (impressions/placements measured on the Platform's own surfaces), **capacity-paced** — guaranteed by **amount, not by date** — and will keep delivering, at no extra charge, until the full purchased amount is delivered ("make-good," no time cap). **The purchased amount is advertising value the Company measures and controls; it is NOT the Advertiser's revenue, sales, or ROI, and there is no results or money-back guarantee.** Delivery may extend beyond the initial term as the audience grows.

6. Cancellation and refunds

A **30-day proportional cancellation** applies: cancel within 30 days of purchase and recover **one-third** of amounts paid (Company retains two-thirds); the non-refundable portion is disclosed and consent-logged before it applies, and any refund is issued as **closed-loop advertising credit**, not cash/card. Outside that window, the delivery commitment in §5 governs. **[Counsel: confirm the cancellation math, disclosure, and credit-not-cash treatment.]**

7. Creative — license, standards, and Company's rights

7.1 Advertiser grants Company a non-exclusive license to host, display, and (where Advertiser requests AI-assisted creative) generate and optimize Advertiser's Advertising across owned and, where Advertiser opts in, social surfaces. AI-assisted/AI-generated creative carries a visible "AI-generated" label and C2PA provenance.

7.2 Advertiser represents its creative and the products/claims in it are **truthful, non-misleading, lawful, and non-infringing**, with substantiation for claims.

7.3 Company may **reject, pause, or remove** any Advertising at its discretion (prohibited categories, policy or legal risk). **[Counsel: prohibited-category list; allocation of liability for Advertiser claims.]**

8. Reporting

Company provides measured performance metrics computed from real activity and benchmarked against standard norms. **Every figure is measured and never a guarantee of ROI**; below a data threshold Company states "still gathering data" rather than fabricating numbers.

9. Confidentiality; termination

Each party protects the other's non-public information. Company may suspend or terminate for breach, non-payment, or legal risk; cancellation/refund is governed by §6. Sections that by nature survive (IP, confidentiality, disclaimers, liability, governing law) survive termination.

10. Representations & warranties; disclaimers

Advertiser represents it is a business acting through an authorized representative, is 18+, and will comply with law and Company policies. **EXCEPT AS EXPRESSLY STATED, THE ADVERTISING IS PROVIDED "AS IS," AND COMPANY DISCLAIMS ALL WARRANTIES TO THE MAXIMUM EXTENT PERMITTED BY LAW AND DOES NOT GUARANTEE REVENUE, ROI, OR SPECIFIC RESULTS.** **[Counsel: adjust for non-waivable consumer/commercial guarantees by jurisdiction.]**

11. Limitation of liability

TO THE MAXIMUM EXTENT PERMITTED BY LAW, NEITHER PARTY IS LIABLE FOR INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES OR LOST PROFITS; AND COMPANY'S TOTAL LIABILITY IS LIMITED TO [AMOUNTS PAID FOR THE AFFECTED ADVERTISING — counsel to set]. **[Counsel: carve-outs.]**

12. Indemnification

Advertiser will indemnify Company against claims arising from Advertiser's creative, products, offers, landing pages, or violation of law or third-party rights. **[Counsel: mutual vs. one-way; caps; defense control.]**

13. Governing law and disputes

Governed by the laws of **[STATE/COUNTRY — counsel]**, without regard to conflicts rules. **[Counsel: arbitration + class-action waiver vs. courts; venue; align with the Terms of Service, EULA, and Partner Agreement.]**

14. General

Independent parties; no assignment without consent (Company may assign to an affiliate/successor); this Agreement plus the Order and the incorporated Company policies are the entire agreement for the subject matter; changes are prospective on notice; severability; no waiver by delay. Where this Agreement conflicts with a mandatory Platform/app-store term, **[counsel to set precedence]**.

Signature block

COMPANY — [Licensor legal entity]

By: ___ **Name:** ___ **Title:** _____ Date: ____

ADVERTISER — [Business legal name]

By: ___ **Name:** ___ **Title:** _____ Date: ____

Business address: _____ Email: _____

Or accepted electronically by the Advertiser's authorized representative at purchase, with acceptance recorded to the consent ledger (timestamp + version).

Notes for counsel (decisions to finalize)

1. **Licensor identity** (align with ToS / EULA / Partner Agreement / patent assignment).
2. **Free-trial auto-conversion (§4.2)** — ROSCA / FTC Negative-Option / state ARL compliance; disclosure + consent copy; ships OFF until approved. See [FOUNDING-OFFER-COUNSEL-REVIEW §3\(g\)](#).
3. **Prepaid 13-cycle billing (§4.1)** — no-auto-renew disclosure; SCA.
4. **Sales-tax / VAT on advertising services (§4.3)** — with the CPA.
5. **30-day proportional cancellation (§6)** — math, disclosure, credit-not-cash enforceability.
6. **Delivery guarantee (§5)** — value-not-ROI, make-good, capacity-paced framing.
7. **Creative — prohibited categories, right-to-reject, advertiser-claim liability (§7).**
8. **Liability cap + indemnity carve-outs (§§11-12).**
9. **Governing law / arbitration (§13)** — consistent across the contract stack.
10. **Precedence** vs. app-store / ToS / EULA (§14).

Draft template, not legal advice; not a substitute for review and finalization by a licensed attorney. Related: [ADVERTISER-TERMS-AND-AGREEMENT](#), [FOUNDING-OFFER-COUNSEL-REVIEW](#), [CURRENT-FOUNDING-OFFER](#), [TERMS-OF-SERVICE](#).